

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 509

BY TRANSPORTATION AND DEFENSE COMMITTEE

AN ACT

RELATING TO THE IDAHO TRANSPORTATION DEPARTMENT; AMENDING SECTION 40-511, IDAHO CODE, TO PROVIDE THAT CERTAIN VEHICLES SHALL NOT BE SUBJECT TO MORE THAN ONE INSPECTION WITHIN A SEVENTY-TWO-HOUR PERIOD; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 40-511, Idaho Code, be, and the same is hereby amended to read as follows:

40-511. STOPPING AND INSPECTION. (1) Wherever by the laws of the state of Idaho any vehicle with a maximum gross weight or registered gross weight, or operated at a gross weight, of twenty-six thousand one (26,001) pounds or more, excepting those transporting placardable quantities of hazardous materials, is used to transport any merchandise, product, commodity, or livestock within the state, within the state to without the state, or from without the state to within the state, the owner or operator of either the motor vehicle or trailer, as defined in chapter 1, title 49, Idaho Code, used to transport such merchandise, product, commodity, or livestock is hereby required to stop at such ports of entry or checking stations established by the Idaho transportation department and submit to inspection, grading or weighing for compliance with the laws of the state of Idaho. A vehicle that is required to stop for inspection pursuant to this section shall not be subject to another inspection pursuant to this section for seventy-two (72) hours after an initial inspection pursuant to this section. The department shall implement technology and procedures to allow vehicles that have been inspected pursuant to this section to lawfully bypass additional inspections pursuant to this section for seventy-two (72) hours following an initial inspection pursuant to this section. Noncommercial vehicles, as defined in section 49-123(2) (k), Idaho Code, shall not be required to stop for inspection pursuant to this section.

(2) Vehicles or combinations of vehicles with a maximum gross weight of ten thousand (10,000) pounds or more transporting placardable quantities of hazardous materials are required to stop at all ports of entry or checking stations established by the Idaho transportation department.

(3) It shall be the duty of such owner or operator of every motor vehicle or trailer to drive the motor vehicle or trailer upon any state-owned inspection station, stationary or portable scale, or private scale, certified by the state of Idaho, when requested to do so by any peace officer, excepting fish and game officers, or authorized employees of the Idaho transportation department.

(4) Authorized employees of the transportation department may stop any vehicle with a maximum gross weight of eighteen thousand (18,000) pounds or more by displaying a flashing red light if the authorized employee has prob-

1 able cause to believe the vehicle bypassed a weighing or inspection station
2 or proceeded through the station without regard for the directional signals.
3 Authorized employees may direct a vehicle that has bypassed a weighing or in-
4 spection station, or has proceeded through the station without regard for
5 the directional signals, to return to the bypassed inspection or weighing
6 station and may issue a citation for failure to stop as required in this sec-
7 tion. The operator of a vehicle shall bring the vehicle to a stop, pulling
8 off the traveled portion of the highway, when directed to do so by an autho-
9 rized employee of the transportation department by use of emergency lights
10 or siren.

11 (5) The department is authorized to implement technology and proce-
12 dures, where practicable, to allow vehicles that meet established criteria
13 to lawfully bypass a port of entry. The department may promulgate rules to
14 implement the provisions of this section.

15 SECTION 2. An emergency existing therefor, which emergency is hereby
16 declared to exist, this act shall be in full force and effect on and after
17 July 1, 2026.